



File No.: EXP202405991

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 04/03/2024, a complaint was filed with the Spanish Agency for Data Protection regarding a possible infringement attributable to BANCO SANTANDER, S.A. with NIF A39000013 (hereinafter, SANTANDER).

The facts brought to the attention of this authority:

The complainant states that the financial entity Banco SANTANDER has proceeded to close their bank account, of which they were the holder, at the request of a third party, without their consent.

Along with the complaint, the following documents were submitted:

- Copy of the account closure document provided by Banco Santander.
- Criteria from the Bank of Spain (excerpt from the 2020 complaints report).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to Banco SANTANDER for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On 04/06/2024, a response was received from the respondent party, in which they state the following:

- 1) The data controller, Banco SANTANDER, indicates that the complaint regarding the unilateral termination of an account with indistinct ownership does not fall within the scope of data protection legislation, as it refers to a matter essentially of a contractual nature.
- 2) The responsible party states that "given the dissatisfaction caused to many clients by the impossibility of terminating a contract without the consent of the co-holder of the account, which led to abuses and economic harm," a clause has been introduced in the contracts allowing any of the holders - in the case of indistinct ownership - "to exercise all rights over it, one of which is the right of each holder to cancel a contractual relationship they do not wish to maintain." Documentation justifying these conditions has been provided.

THIRD: On June 4, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: On June 14, 2024, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint. On July 12 of the same year, the complainant filed a voluntary appeal for reconsideration, and on October 8, 2024, the appeal was sent to Banco Santander, which submitted a written statement on November 4, 2024.

FIFTH: On December 2, 2024, the Director of the Spanish Agency for Data Protection resolved to uphold the appeal for reconsideration filed by the complainant against the resolution of this Agency issued on June 14, 2024, which agreed to archive the complaint concerning the financial entity SANTANDER.

SIXTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

On 11/12/2024, the complainant was requested to provide a signed copy of the contract for the current account (ES00 0000 0000 0000 0000 0000), of indistinct ownership, which, according to the complaint, was canceled by Banco Santander on December 15, 2021, at the request of one of the co-holders.

On the same date, the respondent party was requested to provide the following documentation:

1. Signed copy of the current account contract (ES00 0000 0000 0000 0000 0000), of indistinct ownership, which, according to the complaint, was canceled by Banco Santander on December 15,

2021.

2. Information on the regulatory framework governing the conditions applicable to this type of current account contracts with indistinct ownership.
3. Information on the existence of any resolution from the Bank of Spain that has expressly addressed the validity of such clauses in current accounts with indistinct ownership.
4. Information on the documentation, in addition to the contract between the parties, that is applicable to the contractual relationship of the aforementioned current account (such as general conditions or others).

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The claiming party responded to the request on 18/12/2024 providing the following documentation:

1. Signed copy of the current account contract ES00 0000 0000 0000 0000 0000) of joint ownership which, as indicated in the claim, was canceled by Banco de Santander on December 15, 2021.

According to the claimant, this document was already provided by Banco de Santander in the allegations submitted to the claim at the Bank of Spain for banking malpractice.

2. Report, dated 1/12/2024, from the Conduct of Entities Department of the Bank of Spain regarding the claim filed by the claimant on 13/08/2024 against the entity Banco de Santander, S.A., which states:

Section V Conclusion: “In relation to the facts subject to the claim, this Department understands that the actions of the claimed entity are contrary to good banking practices and financial usages, as it did not obtain the consent of the claiming party for the cancellation of the account at the request of the other co-owner.”

The claimed party responded to the request for information on 08/01/2025, providing the following documentation:

1. Copy of the unified general conditions document, from the 2016 Complaints Report of the Bank of Spain, which includes the general conditions of different types of contracts of the Bank, including those related to current accounts, as well as the document of acceptance of these by the claimant.
2. Copy of the general conditions document for current accounts and savings/time deposits, payment services, debit and credit card services/multichannel contract.
3. Copy of the Agreement for acceptance and incorporation of general conditions in current accounts and savings, time deposits, payment services, debit and credit cards, and multichannel contract of Banco de Santander.
4. Copy of the day-to-day account contract of Banco de Santander, signed by the parties.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) to each supervisory authority and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

III

Prescription of possible infringements

The LOPDGDD, in its Articles 72, 73, and 74, qualifies for prescription purposes the infringements of

the GDPR establishing that very serious infringements prescribe after three years, serious infringements after two years, and minor infringements after one year from the date they were committed.

In the present case, the claiming party files a claim against the claimed party because the latter has proceeded to close the bank account of which the claimant was the holder at the request of a third party, without their consent, providing a document of the closure of the bank account issued by Banco de Santander to corroborate it, according to which said account was canceled on December 15, 2021. The fact that a bank account is closed without prior request or express authorization from its holder may constitute a violation of what is established in the GDPR.

However, according to the provisions of the aforementioned articles of the LOPDGDD, any infringement that may arise from the facts subject to the claim, even if classified as very serious, must be understood as prescribed if more than three years have passed since the date the facts occurred, in this case, December 15, 2021, the date on which the data processing that constitutes the object of the actions took place, namely, the cancellation of the bank account of which the claiming party was the holder, carried out by the claimed party without the consent of the interested party. Thus, any possible infringement arising from such facts was prescribed on December 15, 2024.

In the case at hand, on June 14, 2024, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the claim filed on March 4, 2024. On July 12 of the same year, the claiming party filed a voluntary appeal for reconsideration, and on October 8, 2024, the appeal was sent to the entity Banco Santander, which submitted a written statement of allegations on November 4, 2024.

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On December 2, 2024, the Director of the Spanish Agency for Data Protection resolved to uphold the appeal for reconsideration filed by the complainant against the resolution of this Agency issued on June 14, 2024, which ordered the filing of the complaint concerning the financial entity SANTANDER.

On December 11, 2024, the General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, but access to the content of the notification, and consequently, notification by Banco Santander, was made on December 20, 2024.

Therefore, the possible infringing action of the respondent would be time-barred due to the lapse of the three-year statute of limitations for very serious infringements, as stated in Article 72.1 of the LOPDGDD, starting from the moment of processing by the respondent.

This complaint was subject to the processing that this AEPD generally follows for complaints of this nature, which reveals a possible infringement of the provisions of the GDPR.

This processing is regulated in Articles 64 and following of said Organic Law and includes a preliminary evaluation regarding the admissibility of the complaint, with the possibility of forwarding the complaint to the respondent for them to respond and demonstrate, if applicable, that they have adopted measures to comply with the applicable regulations; this admission phase can be subject to appeal if the interested party's claims are not satisfied, as occurred in this case.

These regulations also contemplate the possibility of carrying out preliminary investigative actions for a better determination of the facts, which in this case were deemed necessary.

With all this, this AEPD did not have sufficient material time to determine the facts and the possible responsibilities arising from them prior to the expiration of the statute of limitations, considering especially that the complaint was filed with this AEPD by the complainant on 04/03/2024, although it referred to events that occurred in December 2021.

Therefore, in accordance with the above, the Presidency of the Spanish Agency for Data Protection AGREES:

FIRST: TO DECLARE the PRESCRIPTION of the alleged infringement committed, with the proceeding number EXP202405991, and the filing of the present actions.

SECOND: TO NOTIFY this Resolution to BANCO SANTANDER, S.A. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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